

September 28, 2026
Dept. 9
Probate Tentative Rulings

3.	26PR0227	IN RE: NANCY L. BLUBAUGH REVOCABLE TRUST, DATED JANUARY 30, 2024
PETITION HEARING		

On September 21, 2026, the Court issued its tentative ruling continuing the matter to September 28, 2026.

On July 31, 2026, Petitioner, Gregory L. Dowd (“Petitioner” or “Successor Trustee”), filed a Petition to Establish Claim of Ownership or Conveyance or Transfer of Property.

On January 30, 2024, Nancy L. Blubaugh (“Settlor”) executed the Nancy L. Blubaugh Revocable Trust (the “Trust”). At the time the Trust was created, Settlor was the owner of the real property and residence located at 827 Mermaid Avenue, Pacific Grove, California 93950 (the “Subject Property”). The Subject Property was acquired in 1984 and was titled in the name of Settlor and Settlor’s husband, now deceased, as Community Property.

Petitioner contends that Settlor’s intent that the Subject Property be held in Trust is contained in the Assignment to Trust executed on the same date in which she executed the Trust. Further evidence of Settlor’s intent is evidenced by Article, One, Section 1.03(a) of the Trust, which provides:

Funding of My Trust. By executing this instrument, I transfer, convey, and assign the property described in the attached Schedule A to my Trustee. I also transfer all my right, title, and interest in and to all of my property that may legally be held in trust and that may be transferred to my trust by this assignment. This assignment includes all of my real, personal, tangible, and intangible property located in the United States, whether separate property or community property, and whether acquired before or after the execution of this instrument, except for these assets that are expressly not transferred by this instrument: life insurance policies, unless the ownership of a policy is transferred to my trust by a separate instrument that specifically refers to the policy; corporate and self-employed (*Keogh*) pension, profit-sharing and stock bonus plans; qualified retirement plans; commercial annuities; Section 1244 (small business) stock; and any property, the transfer of which would result in the immediate recognition of income subject to income or other taxes, would result in the loss of a homestead exemption, or would violate a restriction on transfer agreement.

Schedule A of the Trust identifies the Subject Property as a trust asset. Settlor's Pour-Over Will was executed on the same date as the Trust, further demonstrates Settlor's intent within Article Two, Section 2.01:

Pour-Over to My Revocable Living Trust. I give all of my probate estate, excluding any property over which I have a power of appointment, after expenses and taxes are paid under this Will, to the then-acting Trustee of the Nancy L. Blubaugh Revocable Trust dated January 30, 2024 and executed before this Will, to be added to the property of that trust. I direct that the Trustee administer the property according to the trust and any amendments made prior to my death.

Petitioner requests the Court confirm the Subject Property be vested in Successor Trustee of the Trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property.

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Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that Settlor intended the property be part of the Trust.

TENTATIVE RULING #3:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.